APCON

Advertising Practitioners Council Of Nigeria

(Established by Act No. 55 of 1988 CAP A7 LFN 2004)

ADVERTISING INDUSTRY STANDARD OF PRACTICE (AISoP)

INVITATION FOR MEMORANDA

Following the approval of the Federal Government, the Honourable Minister of Information and Culture, Alhaji Lai Mohammed has authorized the Advertising Practitioners Council of Nigeria (APCON) to begin the formulation of the Advertising Industry Standard of Practice (AISoP) for the purpose of achieving the following objectives:

i. Industry Credit Policy
ii. Minimum Standards for Media and Advertising Business Engagement Terms
iii. Remuneration Model
iv. Alternative Dispute Resolution Mechanism
v. Sanctions for Infractions and Violations of Business Terms
vi. Other Relevant Policies Relating to Items (i) – (v) above for the Improvement of the Advertising Business Standard in Nigeria.

APCON therefore requests the advertising stakeholders, sectoral groups and the public to submit memoranda or proposals for consideration on the above listed matters and any other matter relating thereto that will promote best business practice in the Nigeria advertising industry.

All memoranda or proposals are to be submitted to apconregistrar@gmail.com or our office addresses below not later than Monday 15th February, 2021.

For further enquiries, please call 08050899900.

Dr. Olalekan Fadolapo, *FCA, rpa*
Registrar/Chief Executive

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STERLING BANK "AGEGE BREAD" EASTER ADVERTISEMENT

The Advertising Practitioners Council of Nigeria (APCON) has observed with displeasure the insensitive and provocative Easter celebration advertisement by Sterling Bank Plc which compared the resurrection of Christ with Agege Bread.

The distasteful advertisement was neither submitted nor approved for exposure by the Advertising Standards Panel (ASP), the statutory Panel charged with the responsibility of ensuring that advertisements conform with the prevailing laws of the federation as well as the code of ethics of Advertising in Nigeria.

APCON will take necessary actions to ensure that Sterling Bank is sanctioned for the exposure of such offensive advertisement according to law and that no religious belief or faith is ridiculed or any blasphemous advertisement exposed in any guise.

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ARCON TO COMPEL MINIMUM OF 75% CUMULATIVE LOCAL CONTENT IN ADVERTISEMENTS TARGETED AT THE NIGERIAN MARKET

The Nigerian Advertising Industry loses over N120bn annually to production of advertising, advertisement and marketing communication materials outside the country. This has continuously led to loss of jobs in the industry, retarding the growth and development of the Nigerian advertising industry.

The current efforts of the Federal Government aimed at job creation, inclusive growth and development of various sectors of the economy are negatively affected by this trend which if not regulated, will lead to continuous decimation of the Nigerian Advertising Industry.

In line with Section 8(1)(j) of the Advertising Regulatory Council of Nigeria Act No. 23 of 2022 which empowered the Council to ensure the preservation of Nigerian local content and use of indigenous skills as an important element in advertising, advertisement and marketing communication materials and for such services directed at the Nigerian market, ARCON will commence implementation of a policy to ensure a minimum of 75% cumulative local content of all advertising, advertisement and marketing communication materials with effect from January 1, 2023.

ADVERTISING LOCAL CONTENT GUIDELINE

The policy on minimum of 75% cumulative local content will be applicable to all advertising, advertisement and marketing communication materials directed at the Nigerian market. The following guidelines will apply.

(i) Model & Voice-over artist shall be Nigerian citizens.
(ii) Production of advertising, advertisement and marketing communication materials must be done in Nigeria.
(iii) Ambience should reflect Nigeria as much as possible.
(iv) Production crew may include foreigners. However, Nigerians and Nigerian organizations must partake in the production.
(v) Post production may be done at any location (within or outside Nigeria).

OBJECTIVES OF THE POLICY

The new policy is to enable Nigerians and the Nigerian economy benefit from an industry that has benefitted tremendously from Nigerians as consumers and the Nigerian economy.

Annually, this policy will create over 500,000 new job opportunities within the advertising industry with a positive multiplier effect on the economy. Current job holders will be protected as the Nigerian advertising ecosystem will witness progressive growth. The new policy will also attract investment to the industry.

The leakages and capital flight being experienced in the industry as a result of foreign production of advertising campaigns will be discouraged.

ARCON will continue to promote ethical advertising and marketing communications.

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BAN ON THE USE OF FOREIGN MODELS AND VOICE-OVER ARTISTS ON THE NIGERIAN ADVERTISING MEDIUM/MEDIA

In line with the Federal Government's policy of developing local talent, inclusive economic growth and the need to take necessary steps and actions aimed at growing the Nigerian advertising industry, the Advertising Regulatory Council of Nigeria (ARCON), being the apex advertising, advertisement and marketing communications' regulatory agency of the Federal Government, has in accordance with its statutory mandates, responsibilities and powers as conveyed by the Advertising Regulatory Council of Nigeria Act No. 23 of 2022 bans the use of foreign models and voice-over artists on any advertisement targeted or exposed on the Nigerian advertising space with effect from 1st October 2022.

All advertisements, advertising and marketing communications materials are to make use of only Nigerian model and voice-over artist.

Ongoing campaigns are permitted to run out their terms, however, subsequent applications for revalidation for continued exposure of such materials will not be granted by the Advertising Standards Panel (ASP).

Advertisers, advertisement agencies, media houses, advertising community and the general public are hereby enjoined to take note.

Issued this 22nd day of August, 2022.

Dr. Olalekan Fadolapo, FCA, rpa
Director-General

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ADVERTISEMENT BY BLOGGERS, SKIT MAKERS, INFLUENCERS ETC: NEED TO ENSURE COMPLIANCE WITH THE NIGERIAN CODE OF ADVERTISING PRACTICE

The Advertising Regulatory Council of Nigeria (ARCON) has received complaints on the advertisements, advertising, and marketing communications activities of skit makers, comedians, influencers, content creators/producers, bloggers, vloggers, etc on digital/online media platforms.

Most of the advertisements exposed by this group are not only unethical with unverified claims and misinformation, but also in violation of the Nigerian Code of Advertising Practice.

By this public notice, brand owners, digital agencies, secondary digital media space owners (i.e. bloggers, vloggers, influencers, comedians, skit makers, etc) and other advertising stakeholders in the digital/online media space are advised to obtain pre-exposure approval of all advertisements, advertising and marketing communications in accordance with the Nigerian Code of Advertising Practice and the ARCON Act No. 23 of 2022.

ARCON will take all necessary actions including sanctions and prosecution of violators of the provisions of the Act to ensure compliance.

Dated this 12th day of December 2022.

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2023 GENERAL ELECTION:
NEED FOR ADVERTISEMENT AGENCIES TO EXERCISE CAUTION AND COMPLIANCE WITH RELEVANT LAWS

As political campaign activities and advertisement have commenced in earnest towards the 2023 general elections, advertisement agencies are enjoin to exercise caution and ensure all advertising and other industry related transactions are done within the ambit of the law regulating financial transactions and political campaign exposures.

Advertisements and marketing communications activities suspected to have been used for the purposes of money laundering will be investigated and any person or body corporate who by such investigation is confirmed to be accessory to illegal transactions will be prosecuted in accordance with the provisions of relevant laws.

Sequel to the above, you are kindly requested to note that Section 2(1) of the Money Laundering (Prevention and Prohibition) Act No. 14 of 2022 provides that no person or body corporate shall, except in a transaction through a financial institution, make or accept cash payment of a sum exceeding —

(a) N5,000,000 or its equivalent, in the case of an individual ; or
(b) N10,000,000 or its equivalent, in the case of a body corporate.

Section 2(2) of the Act stipulates that a person shall not conduct two or more transactions separately with one or more financial institutions or designated non-financial businesses and professions with intent to avoid the duty to report a transaction which should be reported or breach the duty to disclose the information.

The information above is for the guidance of ARCON licensees.

Accept the assurances of our highest regards.

Dated this 22nd day of November, 2022.

Dr. Olalekan Fadolapo, FCA, rpa
Director-General

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2023 GENERAL ELECTION:
NOTICE OF NATIONWIDE ENFORCEMENT OF UNAPPROVED POLITICAL ADVERTISEMENTS

The Advertising Regulatory Council of Nigeria (ARCON) established by the Advertising Regulatory Council of Nigeria Act No. 23 of 2022 has observed with concern the increasing spate of exposure of unapproved political advertisements ahead of the 2023 General Elections on all media platforms.

Exposure of unapproved advertisements without prior approval of the Advertising Standards Panel is an offence under section 34(3) of the Act.

All political parties, elective political office aspirants, political campaign organisations, advertisement agencies and media space owners are hereby advised to immediately cease and desist from exposing political advertisements without prior approval of the Advertising Standards Panel as required by the Act.

In view of the above, ARCON, with other relevant law enforcement agencies of the Federal Government, will from Friday 9th December, 2022 commence a nationwide enforcement exercise to remove every political advertisement for which approval was not given prior to exposure.

ARCON will further seek to prosecute any person or body corporate who sponsors, causes to be exposed, exposes or takes benefit of political advertising, advertisement or marketing communication without approval of the Advertising Standards Panel.

All political and advertisement stakeholders are enjoined to take note.

Dated this 22nd day of November, 2022

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REVOLUTION PLUS:
INVOLVEMENT AND USE OF CELEBRITIES IN THE EXPOSURE OF UNAPPROVED ADVERTS ON SOCIAL MEDIA PLATFORMS

The Advertising Regulatory Council of Nigeria (ARCON) noted with concern the involvement and use of celebrities in the exposure of unapproved adverts on social media platforms by Revolution Plus, a Nigerian real estate company.

ARCON has commenced investigation into the exposure of unapproved adverts, violation of the Nigerian Code of Advertising, and the culpability of the celebrities, Revolution Plus, and others involved in the infraction with the aim of prosecuting anyone found guilty.

Some advertisements of the organization on social media platforms have already been found unvetted and unapproved by the Advertising Standard Panel (ASP).

ARCON will prosecute any person or body corporate who sponsors, causes to be exposed or takes benefit of advertising or marketing communications without approval of the ASP.

Dated this 30th day of January, 2023.

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EXPOSURE OF INCENDIARY AND PROVOCATIVE EASTER ADVERTISEMENTS

The Advertising Regulatory Council of Nigeria (ARCON) noted with concern, the series of advertisements exposed during the recent Easter celebration by advertisers, media owners (traditional and online) and advertising agencies.

The advertisements were not only provocative, insensitive, offensive, incendiary but were also not submitted nor vetted by the Advertising Standards Panel in accordance with the provisions of section 53(1) of the Advertising Regulatory Council of Nigeria Act No.23 of 2022.

A number of advertisements were observed during the Easter Celebration by the Council to be unpleasant, and demeaning to the Christian faith.

The Council will take necessary actions to ensure that the rights, sensitivities and religious beliefs of any sect, or group of people are not ridiculed, disparaged, or exploited for commercial gains or otherwise.

Advertisers, advertisement agencies, and the media/media owners are strongly advised to desist from exposing any form of advertisement without obtaining the prior approval of the Standards Panel. Violators will be sanctioned in accordance with the law.

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DRUG SUSPECT NOT AN ADVERTISING PRACTITIONER

The attention of the Advertising Regulatory Council of Nigeria (ARCON) has been drawn to a story published by some news platforms, alleging that a member of the advertising profession was arrested at the Murtala Muhammed International Airport, Lagos, for attempting to export 14.4 kilograms of cocaine concealed in lace and Ankara fabrics to Saudi Arabia.

We wish to state that the said Aribiyi Ahmed Olaseinde is not an advertising practitioner as claimed, and that, no such name is on our record of Registered Advertising Practitioners in Nigeria.

Members of the public and stakeholders in the Advertising and Marketing Communications Industry are hereby advised to disregard the alleged claim by the said drug suspect as no member of the Advertising Profession goes by that name in our register of practitioners.

For the avoidance of doubt, Advertising is a noble profession in Nigeria, a status conferred on it by law. Only persons who are duly qualified and registered according to the provisions of the law are entitled to practice Advertising and to be recognized as Advertising Practitioners in Nigeria.

We wish to categorically state that, ARCON remains committed to ensuring that the advertising ecosystem is sanitized, and shall not shy away from pursuing all lawful means, including causing the prosecution of violators of the Act, and the Code of Advertising Practice in Nigeria when a violation occurs, in line with the Advertising Regulatory Council of Nigeria Act No 23 of 2022.

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N30B SUIT: COURT GRANTS ARCON LEAVE TO SERVE FACEBOOK COURT NOTICE

The Federal High Court sitting in FCT, Abuja has granted the Advertising Regulatory Council of Nigeria (ARCON) the leave to serve the writ of summons and all other Court processes including hearing notices on the social media tech giant META PLATFORM owners of Facebook, Instagram, Messenger and WhatsApp social media apps at her corporate head office in the USA.

The nod by the Court was given pursuant to an application by ARCON in her N30b suit against the internet giant who is the 1st Defendant in the pending suit for the violation of the extant advertising laws of Nigeria. The second Defendant is AT3 Resources Limited.

ARCON is seeking, among others, a declaration that the publication and exposure of various advertisements and marketing communications materials targeted at the Nigeria market and in Nigeria through the online/social media platforms of the 1st Defendant which include Facebook and Instagram by the Defendants without the prior vetting and approval by the Advertising Standards Panel (ASP), and having no regards for the Nigerian culture, constitutional tenets, moral values and religious sensitivity of the Nigerian people is illegal, unlawful and a violation of extant advertising laws in Nigeria.

It also seeks an order of perpetual injunction restraining the Defendants, their privies, agents, assigns, servants, workers, associates or however constituted or described from publishing or exposing any advertisement and marketing communications material targeted at the Nigeria market and in Nigeria through the online/social media platforms of the 1st Defendant without first submitting the proposed advertisement and marketing communication to the Plaintiff for vetting and approval before exposure in line with the Nigerian Advertising Law.

ARCON is seeking the sum of N30bn in fines and sanctions for the continued violations and infractions of the Advertising Regulatory Council of Nigeria Act No. 23 of 2022.

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FEDERAL GOVERNMENT CONSTITUTES THE ADVERTISING OFFENCES TRIBUNAL; APPOINTS HONOURABLE JUSTICE CECILIA M. A. OLATOREGUN (RTD) AS CHAIRMAN

The Federal Government has constituted the Advertising Offences Tribunal and appointed a chairman and four other members to adjudicate over offences created under Advertising Regulatory Council of Nigeria Act No.23 of 2022, Code of Advertising Practice, Standard of Practice, Proclamation, and other relevant enactments made pursuant to the Act.

The Tribunal is an independent specialised judicial body established to ensure equity, openness, fairness and impartiality in all dispute and offences committed or allegedly committed under the Act. The Tribunal will advocate speedy hearing and timely resolution of all matters before it.

The Honourable Minister of Information and Culture, Alhaji Lai Mohammed acting in line with section 38 of the Act appointed **Honourable Justice Cecilia M. A. Olatoregun (rtd)** as the Chairman of the tribunal. Justice Olatoregun served meritoriously as a Judge of the Federal High Court from July 2000 to November 2019. Before her appointment to the bench, she was the Chief Registrar and Admiralty Marshal of the Federal High Court from November 1998 to July 2000. As an administrative Judge, she oversaw 11 Judges in the Lagos Division and presided over 4 divisions of the Federal High Court at different times. She is a member of the International Association of Women Judges in Nigeria, Commonwealth Magistrate and Judges Association, among others. **Justice Olatoregun** has facilitated and delivered papers at conferences and seminars, within and outside the country. By this appointment, she becomes the Tribunal's first Chairman.

The other 4 members of the Tribunal are **Mr. Charles Odenigbo, Mr. Moroof Aileru Esq, Mrs. Julia Oku Jacks, and Mr. Idorenyen Enang.**

Mr. Charles Odenigbo is a Registered Advertising Practitioner, and former Executive Secretary of the Newspapers Proprietors Association of Nigeria (NPAN), an advertising, entertainment, and media law expert with almost three decades of experience in law practice. Mr. Odenigbo was recently appointed as the Alternate Chairman of the Media and Creative Committee of the Nigerian Bar Association (NBA). He is the Director General of Centre for Media Law and Development.

Mr. Moroof Aileru, a legal practitioner with over twenty (20) years post call experience in litigation. A member of the Nigerian Bar Association (NBA), he is vastly experienced in arbitration, corporate law practice and litigation.

Mrs. Julia Oku Jacks, a Fellow of the profession. She is one of the founding partners of SO&U Saatchi & Saatchi. Mrs Jack is one of the distinguished and respected female practitioners in the Nigeria Advertising industry. She has over three decades worked experience in academics, advertising and marketing communications. She has chaired several industry creative awards and has facilitated several training courses within and outside the industry.

Mr. Idorenyen Enang, a Fellow of the profession and former President of the Advertisers Association of Nigeria (ADVAN). He is currently the President of the National Institute of Marketing of Nigeria (NIMN). Mr. Enang served as marketing Director and Chief Executive Officer of several multinational companies and has held senior positions on the board of several global organizations within and outside the country.

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NEW VETTING FEE REGIME

Sequel to the need to align the current vetting fees, procedures, and processes across all media for inclusive pre-exposure vetting in line with the Nigerian Advertising Laws and Regulations, the Advertising Regulatory Council of Nigeria (ARCON) has introduced a new vetting fee regime as follows.

1. SME CATEGORY FOR TRADITIONAL MEDIA ONLY (PRINT, BROADCAST & OUT OF HOME)

VETTING FEES

(i) New Vetting Fee- N10,000.00 (10 working days period) (Previously N25,000)
(ii) 8 hours accelerated fee – N100,000.00 (Maximum of 15 concepts Per Application)
(iii) 16 hours accelerated vetting – N70,000.00 (Maximum of 10 concepts Per Application)

The Validity Period of Approval is Twelve (12) Months.

The creation of a special window for SMEs is to further encourage and support the SME sector of the economy. Organizations that qualify in this category will apply for vetting under SME Classification and provide evidence of their enterprise as an SME with a letter from either the Small & Medium Enterprise Development Agency of Nigeria (SMEDAN) or the National Association of Small and Medium Enterprises (NASME).

2. NEW MEDIA (ONLINE AND SOCIAL MEDIA PLATFORMS) – All Brands & Organizations

VETTING FEES

(i) New Vetting Fee- N7,500.00 (7 working days period) (Previously N25,000)
(ii) 8 hours accelerated fee – N100,000.00 (Maximum of 15 concepts Per Application)
(iii) 16 hours accelerated vetting – N70,000.00 (Maximum of 10 concepts Per Application)

The Validity Period of Approval is Three (3) Months.

All advertisement designs for exposure on all online or social media platforms are classified within this category, notwithstanding the brand, organization, or industry.

3. TRADITIONAL MEDIA (PRINT, BROADCAST, AND OUT-OF-HOME)

The current and existing vetting fee regime (normal and accelerated vetting) remains the same under this category for all brands, organizations, or industries (except for SMEs)

VETTING PROCESS

(i) 8 hours accelerated vetting (Maximum of 15 concepts Per Application)
(ii) 16 hours accelerated vetting (Maximum of 10 concepts Per Application)

The Validity Period of Approval is Twelve (12) Months

The New Regime has not increased the existing vetting fee but rather, broken it down to encourage responsible advertising through pre-exposure vetting in line with the Nigerian code of advertising and vetting guidance.

For further enquiries, kindly contact the Advertising Standards Panel (ASP) secretariat on 08050899804, 09154492668, asp_check@yahoo.com, aspvetting@gmail.com, or any of our offices nationwide.

Dr. Olalekan Fadolapo, FCA, rpa
Director-General

9th May, 2023

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TROPHY LAGER BEER OFFENSIVE BILLBOARD ADVERTISEMENT

The Advertising Regulatory Council of Nigeria (ARCON) condemns the exposure of non-vetted Trophy Lager Beer advertisements in some states of the federation without the requisite approval.

The said advertisements which have offended the sensitivities of some sections of Nigeria's ethnic and religious communities were neither submitted for vetting nor approved by the Advertising Standards Panel (ASP) for exposure.

The advertisements are considered reprehensible and are in violation of the provisions of the ARCON Act and the Nigerian Code of Advertising.

Having failed to comply with relevant regulatory frameworks which hold that all advertisements, advertising and marketing communications in Nigeria or directed at the Nigerian market shall be legal, decent, honest, truthful, respectful and mindful of Nigeria's culture, religions and constitutional tenets, ARCON has ordered the removal of the advertisements on all media platforms nationwide.

ARCON will take all necessary and appropriate steps to ensure the violators are sanctioned in line with the relevant laws.

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Director-General

2nd June, 2023

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UNAPPROVED INVESTMENT SOLICITATION ADVERT BY TIWA COMMERCIAL HUB

This is to inform the general public that the Tiwa Commercial Hub advert being exposed on online media platforms soliciting investment with a promise of 32% return was neither submitted for vetting nor approved by the Advertising Standard Panel (ASP) in line with the Advertising Regulatory Council of Nigeria Act No 23 of 2022.

The spate of unapproved investment solicitation adverts on online media platforms is not only worrisome but could lead to a loss of savings. The general public is enjoined to exercise caution.

ARCON will continue to collaborate with other law enforcement agencies to stem this tide and ensure sanity in the Nigeria Advertising Industry.

ARCON will further seek to prosecute any person or body corporate who sponsors, caused to be exposed, or exposes unapproved advertisements on any medium without the approval of the ASP in line with the Nigerian Code of Advertising.

Dr. Olalekan Fadolapo, FCA, rpa
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8th June, 2023

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UNLAWFUL AND INDECENT D'GENERAL BITTERS ONLINE COMMERCIAL BY SKIT MAKERS "MR. MACARONI" AND "MUMMY WA"

The attention of the Advertising Regulatory Council of Nigeria (ARCON) has been drawn to the D'General Bitters as a sexual stimulant advertisement by Mr. Adebowale Adedayo a.k.a. "Mr. Macaroni" and Miss Kemi Ikuseedun a.k.a. "Mummy wa" being currently exposed on the online/social media platforms.

The advertisement was neither presented for vetting nor approved by the Advertising Standards Panel (ASP) and is in violation of the ARCON Act and the Nigerian Code of Advertising.

ARCON has directed the advertiser, agency and platform owners to immediately remove and stop further exposure of the advertisement.

ARCON will take all necessary steps to ensure the violators are sanctioned.

As gatekeepers of advertising, advertisement, and marketing communications, ARCON will continue to ensure all advertisements are ethical, responsible and in conformity with the prevailing laws of the Federation as well as the Nigerian Code of Advertising.

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Director-General

14th July, 2023

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"ALL EYES ON THE JUDICIARY" ADVERTISEMENT: DISSOLUTION OF THE ADVERTISING STANDARDS PANEL (ASP) SECRETARIAT

The attention of the Advertising Regulatory Council of Nigeria (ARCON) has been drawn to the "All Eyes on the Judiciary" advertisements exposed on some billboards across the country.

The concepts exposed were not approved by the Advertising Standards Panel, hence, the Council has directed that all the materials being exposed be brought down immediately and the violators sanctioned.

The Advertising Standards Panel of the Council also erred in the approval of one of the concepts as the advertisement failed vetting guidelines on the following grounds:

1. The cause forming the central theme of the campaign in the advertisement is a matter pending before the Presidential Election Petition Tribunal. Hence, it's jus pendis.

2. A matter being jus pendis and awaiting judicial pronouncement is, by virtue of the Nigerian legal system, precluded from being a subject of public statement, debate, discussion, advertisement etc.

3. The advertisement is controversial and capable of instigating public unrest and breach of public peace.

4. The advertisement is considered a blackmail against the Nigerian Judiciary, the Presidential Election Petition Tribunal and particularly the Honourable Justices of the Tribunal who are expected to discharge their judicial functions without fear or favour over a matter that is currently jus pendis.

The Advertising Standards Panel (ASP) Secretariat failing to diligently exercise its function as the gatekeeper of advertising, advertisement and marketing communications is hereby dissolved.

The council will set up a committee to investigate the circumstances leading to the erroneous approval of one of the concepts of the inappropriate advert and the breach of the vetting guidelines. Consequently, the Director and Deputy Director, Regulations have also been suspended. The suspension is to enable unprejudice investigation of the issue.

Dr. Olalekan Fadolapo, FCA, fnimn, rpa
Director-General

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ARCON
Advertising Regulatory Council Of Nigeria

ADVERTISING CONTRIBUTION TO THE NIGERIAN ECONOMY

1. Advertising as an economic enabler has continued to contribute tremendously to the growth and development of the Nigerian economy.

2. It supports competition, drives innovation, creates jobs and funds the media as a part of its contribution to the economy.

3. A detailed knowledge of the industry size allows us to fully assess opportunities and accurately plan our policies and approach in the best interest of the industry in particular and the economy at large.

4. Sequel to the need to determine the:
   a. The size of the Nigerian Advertising Industry
   b. The contribution of the Nigerian Advertising Industry to the economy
   c. The multiplier effect of the contribution of the Nigerian Advertising industry to the Nation's GDP

5. Advertising Regulatory Council of Nigeria (ARCON) has set up a committee with the responsibility to determine the size of the Nigerian Advertising industry using a quantitative approach in line with the best global practices.

6. The Committee is Chaired by Mr. Femi Adelusi (President, Media Independent Practitioners Association of Nigeria (MIPAN)) with representatives from relevant sectors of the industry.

7. The council is hereby inviting inputs, memorandum and insights from the stakeholders in particular and the general public.

8. Kindly send your submission to arconspecialproject@gmail.com on or before Friday, 3rd November 2023.

Thank you.

Dr. Olalekan Fadolapo, FCA, fnimn, rpa
Director-General

23rd October, 2023

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ARCON
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REBRANDING NIGERIA INITIATIVE

1. The Honourable Minister of Information and National Orientation, Alhaji Mohammed Idris, has endorsed the ARCON-led Advertising Industry Rebranding Nigeria Initiative.

2. The Rebranding Initiative has the potential to unlock new opportunities, elevate our national pride and foster positive engagement within and outside the country.

3. It is a multi-faceted Integrated Marketing Communication process that requires careful planning, research and insight, and effective execution of a detailed protocol.

4. ARCON has set up a committee chaired by Mr. Steve Babaeko (President, Association of Advertising Agencies of Nigeria (AAAN)) with representatives from all the relevant stakeholders.

5. The committee has been mandated to examine our country's brand DNA with the aim of developing communication that will resonate with our people, promote our cultural diversity and enhance our nation's value and ethics.

6. Sequel to the above, ARCON is requesting from the advertising practitioners, stakeholders and the general public, input, insights, strategy documents etc that can enhance the assignment of the committee.

7. Kindly send your contributions to arconspecialproject@gmail.com on or before Friday 27th October 2023.

Thank you.

Dr. Olalekan Fadolapo, FCA, fnimn, rpa
Director-General

19th October, 2023

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ARCON
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EXPOSURE OF UNAPPROVED ADVERT USING A CELEBRITY WEARING A MILITARY GENERAL'S UNIFORM BY D'GENERAL BITTERS

The attention of the Advertising Regulatory Council of Nigeria (ARCON) has been drawn to the advertisement of D'General Bitters using a celebrity (DAVIDO) who wore the uniform of a military general being exposed on the OOH media.

Upon application seeking approval to advertise, ARCON's Advertising Standards Panel (ASP) requested the advertising agency to seek for, and obtain approval of the Nigerian military authority to use its military outfit for the purpose of advertisement. Neither the authorization of the Nigerian military for the use of its uniform, nor the approval of the ASP was obtained before the said D'General Bitters advertisement was exposed.

This is to reiterate that it is illegal to use the uniforms of military personnel, Nigerian police, NYSC, or that of any other paramilitary agency for an advertisement without formal approval from the concerned authority.

ARCON will prosecute any person or body corporate who sponsors, causes to be exposed, or exposes unapproved advertisements on any medium without approval in line with the Nigerian Code of Advertising.

ARCON will continue to collaborate with other law enforcement agencies to stem this tide and ensure sanity in the Nigeria Advertising Industry.

Dr. Olalekan Fadolapo, FCA, fnimn, rpa
Director-General

15th November, 2023

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ARCON
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VETTING FEE IS ₦35,000 (THIRTY-FIVE THOUSAND NAIRA) AND NOT ₦3MILLION AS PUBLISHED IN THE NEWSPAPER

The attention of the Advertising Regulatory Council of Nigeria (ARCON) has been drawn to a recent published interview in the Punch Newspaper headlined "Advertisers protest ARCON'S N3million Advert vetting fee".

The publication is false, malicious and a misrepresentation of the vetting fee process.

This is one of the many interviews of the President of Advertisers Association of Nigeria (ADVAN) Mr. Osamede Uwubanmwen in which he misrepresented the fact, misinformed the public and maliciously maligned the reputation of ARCON as an insensitive and anti-industry development agency.

Vetting fee is N35,000 and not N3million as headlined and published in the Punch Newspaper.

There is a deterrent fee of N3million for organizations that produce their advertisements outside Nigeria. This is not a vetting fee, it is part of ARCON's efforts aimed at encouraging the use of local talents and production of advertisement in Nigeria as part of our industry development and growth programme.

Where an advertisement is produced in Nigeria, no deterrent fee is required for such advertisement.

Organizations are enjoined to embrace the use of local talents and production of all advertisement, advertising and marketing communication directed or targeted at the Nigerian market in Nigeria.

Information about vetting fees and associated rates are available at the ASP secretariat and our offices nationwide.

Winifred Akpan, arpa
Head, Corporate Affairs

24th January, 2024

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ARCON
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DR. EMMANUEL AGU TO CHAIR THE ADVERTISING STANDARDS PANEL



The Advertising Regulatory Council of Nigeria (ARCON), has announced Dr. Emmanuel Agu as the new Chairman of the Advertising Standards Panel. The Standards Panel established by section 53 of the Advertising Regulatory Council of Nigeria Act No. 23 of 2022 is charged with the duty of ensuring that advertisements conform with the prevailing laws of the Federation as well as the Code of ethics of the advertising profession.

He will be taking over from Mrs. Omowunmi Owodunni who has been Chairperson since 2022.

Dr. Emmanuel Agu is a Ph.D. holder in Marketing (with specialisation in Marketing Communication) from Babcock University, Ilishan Remo, Ogun State. He holds an M.Sc. in Media & Marketing Communication from Pan-Atlantic University, an MBA in Marketing Management from Lagos State University, and a B.Tech (Hons.) in Agricultural Economics & Extension from the Federal University of Technology (FUTO), Owerri, Imo State.

Dr. Agu started his career as Senior Brand Manager, with Guinness Nig. Plc. (a Diageo Company), in 2006. He joined Nigerian Breweries Plc in 2013 as a Marketing Manager. He moved to JOTNA Group Limited (The LaCasera Company) Lagos, Nigeria in 2018 as Group Marketing Director.

As an experienced marketing leader, Dr. Agu has a proven track record of directing and managing known brands like Mainstream Lager (Goldberg, Life Beer, "33" Export & More Lager), Stout (Legend Extra Stout, Turbo King & Williams), Lager (Gulder, Life Beer, "33" Export & More Lager), Stout (Legend Extra Stout, Turbo King & Williams), La Casera Apple drink, Smoov Chapman, Bold Franchise, Nirvana Range of Water (Premium Table Water, Soda Water and Tonic Water) among others.

With many years of experience in the marketing space, Dr. Emmanuel Agu will better position the ASP in the drive to uphold the ethics and standards of the Council and advertising industry in general.

In line with the ARCON act, other stakeholders with representatives on the ASP are:
(i) Association of Advertising Agencies of Nigeria (AAAN),
(ii) Advertisers Association of Nigeria (ADVAN),
(iii) Broadcasting Organisation of Nigeria (BON),
(iv) Newspaper Proprietors' Association of Nigeria (NPAN),
(v) Outdoor Advertising Association of Nigeria (OAAN),
(vi) Media Independent Practitioner Association of Nigeria (MIPAN),
(vii) Experiential Marketers Association of Nigeria (EXMAN),
(viii) Federal Competition and Consumer Protections Commission (FCCPC),
(ix) Central Bank of Nigeria,
(x) Securities and Exchange Commission (SEC),
(xi) National Insurance Commission (NAICOM),
(xii) Nigerian Communication Commission (NCC),
(xiii) National Agency for Food and Drug Administration and Control (NAFDAC),
(xiv) National Broadcasting Commission (NBC),
(xv) National Council of Women Societies (NCWS),
(xvi) Nigeria Lottery Commission,
(xvii) Nigeria Press Council, and

Each stakeholder is expected to be represented by one person. Dr. Agu will chair other panel members to perform the responsibility of advertising clearing house in line with the law.

Winifred Akpan, arpa
Head, Corporate Affairs

3rd July, 2024

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APCON

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GLO LINK YOUR NIN COMMERCIAL (OSAS IGHODARO CONCEPT)

The monitoring team of the Advertising Practitioners Council of Nigeria (APCON) has flagged a Glo dial *109# "Link Your NIN" commercial featuring a female model (Osas Ighodaro). The campaign which was caused to be exposed by Globacom Limited is currently being aired on some TV stations and social media platforms targeted at the Nigerian market and eliciting complaints about the exposure of the model's cleavage.

The advertisement was neither submitted nor approved for exposure by the Advertising Standards Panel (ASP), the statutory body charged with the responsibility of ensuring that advertisements conform with the prevailing laws of the federation as well as the code of ethics of Advertising in Nigeria.

APCON has written to the management of Globacom Limited to stop further exposure of the advertisement/commercial on all media platforms (broadcast and social media). We have also written to media stations and the relevant government agencies in this regard.

APCON is committed to ensuring that the advertising ecosystem is sanitized and shall use all lawful means including causing the prosecution of violators of the Advertising Laws of the Federation.

Dr. Olalekan Fadolapo, FCA, rpa
Registrar/Chief Executive

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ADVERTISING INDUSTRY STANDARDS OF PRACTICE (AISOP)

In line with the Federal Government's reformative plans aimed at accelerating the pace of economic recovery post pandemic era, enhance gainful employment, overhaul the Institutional and regulatory framework for the Nigerian Advertising Industry, the Hon. Minister of Information and Culture Alh. Lai Mohammed has approved the implementation of the Advertising Industry Standards of Practice (AISOP).

The AISOP provides a minimum standardized commercial terms for agencies, advertisers, media houses, advertising services providers and stakeholders, in matters relating to the business of advertising and marketing communications in Nigeria.

AISOP is a business framework that seeks to improve mutual respect, eradicate unfair advantage, unethical competition, and inequitable policies between relevant stakeholders in the advertising and marketing communications industry in Nigeria.

HIGHLIGHTS OF AISOP

a. Parties involved in an advertising and marketing communications must establish a contract. All contracts shall be in writing and duly signed by the parties.
b. Parties to advertising contract shall ensure that confidential or proprietary information belonging to the other party is not disclosed to a third party unless consent covering the disclosure is first obtained in writing from the other party. Parties may sign a Non-Disclosure Agreement to protect confidential or proprietary information.
c. All parties shall abide by laws governing copyright protection in Nigeria.
d. An Advertiser may invite one or more advertisement agencies to pitch for any or all its advertising and, or marketing communications services provided that the agency invited for such pitch shall be entitled to a pitch fee as stipulated in AISOP.
e. No term or condition by a party or all parties in an agreement shall constitute a waiver for pitch fee.
f. Payment for advertising services shall be made within 30 days; On no account shall payment be later than (45) days from receipt of invoice.
g. Where invoice is received and payment is not made within 45 days, interest shall accrue on the sum at the prevailing Central Bank of Nigeria's approved interest rate.
h. All payments shall specify the particular invoice being paid. Payment on account must be discouraged to avoid reconciliation challenges.
i. Agency Remuneration shall be made according to industry guidelines stated in AISOP.
j. Media rates may be increased at any time provided that at least 30 days' notice is given prior to implementation.
k. Disengagement of advertisement agency is done in accordance with the terms and conditions stipulated in the contract of engagement and in line with the provisions of AISOP on disengagement protocol.
l. Media monitoring, audit bureau of circulation and audience measurement covering: Broadcast, Out-of-Home, Print and Digital shall comply with respective relevant policies set out by APCON and the Federal Ministry of Information and Culture.

The Advertising Industry Standard of Practice takes effect from the 6th day of October, 2021 and shall so become enforceable by APCON. Copies of the AISOP can be obtained from APCON offices nationwide.

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RE-ADVAN REJECTS AISOP

The attention of the Advertising Practitioners Council of Nigeria (APCON) has been drawn to the recent press release by the Advertisers Association of Nigeria (ADVAN). ADVAN in its press release rejected the implementation of the Advertising Industry Standards of Practice (AISOP).
APCON will like to state its position as follows:

1. APCON is a government regulatory agency established by Act No 55 of 1988 (now Advertising Practitioners (Registration Etc) Act, CAP A7, L.F.N. 2004) to regulate the Advertising Industry. Its mandate includes regulating and controlling practice of advertising in all its ramifications in Nigeria.
2. The AISOP is in line with the Federal Government's reformative plans aimed at accelerating the pace of economic recovery post pandemic era, enhance gainful employment, attract talents and investment to the industry as well as overhaul the business regulatory framework of the Nigerian Advertising Industry.
3. AISOP seeks to improve mutual respect, eradicate unfair advantage, unethical competition and inequitable engagement terms between stakeholders in the Advertising and Marketing Communication sector of the economy.

PROCESS LEADING TO AISOP

Sequel to the approval of the Honourable Minister of Information and Culture, Alh. Lai Mohammed on the need for a business regulatory framework as part of the advertising industry reform, APCON wrote to all the sectoral groups and stakeholders requesting for memorandum on industry standards, terms of engagement and other business protocols. A committee was thereafter set up with representatives of sectoral groups (ADVAN inclusive) to come up with an Industry Standard of Practice. The committee met and proposed the document. APCON had a working session with the committee and engaged in detailed discussion of the document.

Each sectoral group's views and points were discussed and APCON moderated a win-win situation in line with best practices and Federal Government policies. All other sectorial groups made concessions based on the maxim of equity, fair play and government efforts aimed at growing the economy. The document was later presented to the Hon. Minister of Information and Culture for approval in line with the APCON's establishment Act.

HIGHLIGHTS OF THE AISOP

1. **Media Rates Deregulation:** No sector of the Industry should cap or determine what media houses should charge as media advert rates going forward. However, media houses should give 30 days' notice before implementation of new media rate. Advertisers and agencies should accord Nigeria media houses the same mutual respect they accord foreign media operating in Nigeria and align with best practices.
2. **Credit Policy:** In line with best practices, payment for media and other advertisement services should be done within 45 days. Payment after 45 days will attract interest at prevailing CBN interest rate. Advertisers and agencies should honour advertising and marketing communications invoice promptly. All parties must be transparent in their dealings.
3. **Agency Engagement Process:** Pitch procedure should be professionalised. Parties in pitch process must respect Nigeria's copyright Law. Pitch fee should be paid to agencies that participated in a pitch process in line with best practices. Profile Presentation, Agency Visit, Meet and Greet are free, however, Strategy and/or Creative Presentation will attract pitch fees if the agency participates in a pitch.
4. **Agency Disengagement Policy:** Where advertisers decide to disengage an agency, the incoming agency, outgoing agency and the advertiser must reconcile all financial obligations. The outgoing agency must hand over the assets and liabilities of the account to the new agency as this will enable stakeholders track financial obligations and responsibilities.
5. **Contract**: Going forward, all contracts of advertisement, advertising and marketing communications should be in writing and duly signed by parties involved in the contract.
6. **Implementation Date:** All existing contracts, MPO, LPO and other POs should serve out their engagement terms, however, new engagement with effects from 6th October, 2021 should align with AISOP.

CBN, SEC, NCC, NAICOM and other regulatory agencies moderate their respective sectors and set guidelines for operators in line with their establishment Act and the Constitution of Federal Republic of Nigeria as well as promote economic growth and development. APCON has done the same in the advertising industry. The Heads of advertising sectoral groups and other stakeholders have publicly endorsed the AISOP as well as commended APCON. However, only ADVAN has rejected it. The position of ADVAN is being seen as a gang up by few multinationals and conglomerates against the Federal Government policy of inclusive growth in the SME sector in particular and the Nigerian economy in general as their position simply implies that the current challenges plaguing the industry should continue unabated, which will lead to loss of jobs in the industry, promote unethical practices and unhealthy rivalry.

Some business-friendly multinationals and conglomerates are incredibly supportive of service providers in the advertising ecosystem with pro-enterprise engagement terms, rewarding remuneration system, payment cycle, etc. Their policies are better than what is being proposed by AISOP as Industry minimum operating standard. We will endeavour to give credit to them as we move forward on the issue. The Advertising Industry reform has the capacity of creating over 100,000 jobs in the sector in the first 12 months of full implementation, improve salary payment to employees in the industry, attract more talents and investment as well as reposition the advertising industry in Nigeria for growth.

APCON is committed to constantly improving the practice and business of advertising in Nigeria and shall always welcome productive ideas that will enable her deliver the best of conducive business environment in line with her establishment Act, Federal Government policies and public interest.

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Registrar/Chief Executive

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PROCESS LEADING TO AISOP

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HIGHLIGHTS OF THE AISOP

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RE–ADVAN REJECTS AISOP (CONT'D)

3. **Agency Engagement Process:** Pitch procedure should be professionalised. Parties in pitch process must respect Nigeria's copyright Law. Pitch fee should be paid to agencies that participated in a pitch process in line with best practices. Profile Presentation, Agency Visit, Meet and Greet are free, however, Strategy and/or Creative Presentation will attract pitch fees if the agency participates in a pitch.
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APCON is committed to constantly improving the practice and business of advertising in Nigeria and shall always welcome productive ideas that will enable her deliver the best of conducive business environment in line with her establishment Act, Federal Government policies and public interest.

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17TH NOVEMBER, 2021

INTRODUCTION OF THE NIGERIAN CODE OF ADVERTISING PRACTICE/SALES PROMOTION AND OTHER RIGHTS/RESTRICTIONS ON PRACTICE (6TH EDITION)

1. The 6th edition of the Nigerian Code of Advertising Practice, Sales Promotion and other Rights/Restriction on Practice has been approved by the Honourable Minister of Information and Culture, Alhaji Lai Mohammed in accordance with, and by virtue of the powers vested in him by section 29 of the Advertising Practitioners (Registration Etc) Act, CAP A7, L.F.N. 2004 (as amended).

2. Operation of the 5th edition of the Code will cease on 30th November 2021 and the new Code will take effect from the 1st day of December 2021.

3. The provisions in the new Code were considered and adopted by APCON in collaboration with the sectoral groups and consultation with relevant stakeholders in the advertising and marketing communications industry.

4. The new edition of the Code has as much as possible satisfactorily addressed the identified gaps not adequately covered, or have in the course of time and evolution of technology arisen, which created some challenges in the implementation of the 5th edition of the Code.

5. APCON is committed to enforce the implementation of the 6th edition of the Code and therefore urges all stakeholders to support and ensure the success of the new Code.

6. The advertising industry and general public are kindly advised and encouraged to abide by the provisions of the Code in matters relating to or connected with the application of the Code in the course of advertisement, advertising or marketing communications of any product, idea, cause, person, organisation or service targeted at or exposed to the Nigerian market.

7. Copies of the new Code are available at all APCON offices nationwide.

Dr. Olalekan Fadolapo, FCA, rpa
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APCON

Advertising Practitioners Council Of Nigeria

(Established by Act No. 55 of 1988 CAP A7 LFN 2004)

17TH NOVEMBER, 2021

REMOVAL/SUSPENSION OF NAMES FROM THE REGISTER OF ADVERTISING PRACTITIONERS

1. By this notice, registered advertising practitioners are advised to take note that the Advertising Practitioners Council of Nigeria (APCON) shall, in line with section 9(2)(d) and (e) of the Advertising Practitioners (Registration Etc) Act, CAP A7, L.F.N. 2004, remove from the register of practitioners, with effect from Friday 17th December 2021, the names of persons who have failed, refused or neglected to pay the prescribed practice fees in accordance with their category of membership for the past 5 (five) years from 1st December 2021.

2. Similarly, registered advertising practitioners who are yet to pay the fees prescribed for their categories in accordance with the provisions of Act for the past 2 (two) to 5 (five) years from the 1st December 2021 shall have their membership of the profession suspended.

3. Any person whose name has been removed from the register and seeks to be readmitted shall, upon payment of all outstanding fees, present a new application for membership and shall pass through the membership admission process afresh.

4. A suspended member will have a period of 1 (one) year moratorium from the date of suspension within which to pay all outstanding fees or have his/her name removed from the register.

5. All registered members of the profession are kindly advised to update their records and pay the prescribed practice fees due on or before Friday 17th day of December 2021.

6. Updated list of qualified registered advertising practitioners who have fulfilled the mandatory and statutory requirements will be published in national dailies on Monday 6th day of January 2022 and thereafter.

7. For enquiries, kindly contact - Joe (08050898446) or Dapo (09154492671)

Dr. Olalekan Fadolapo, FCA, rpa
Registrar/Chief Executive

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Advertising Practitioners Council Of Nigeria

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REQUEST FOR PROPOSAL (RfP) FROM AUDIENCE MEASUREMENT AND INSIGHT PROVIDERS WHO WISH TO DELIVER AUDIENCE MEASUREMENT SERVICES ON NIGERIAN MEDIA PLATFORMS TO THE FEDERAL MINISTRY OF INFORMATION AND CULTURE

The Federal Government has approved the establishment of a robust industry-wide, technology-enabled Audience Measurement System (AMS) covering TV, Radio and other media for the broadcast and advertising industry in Nigeria.

Sequel to the above, the Honourable Minister of Information and Culture, Alhaji Lai Mohammed has authorized the Advertising Practitioners Council of Nigeria (APCON) to request for proposal (RfP) from audience measurement and insight providers who wish to deliver audience measurement services on Nigerian media platforms.

For more details on the Audience Measurement System proposal kindly visit and download the RfP document from our website - www.apcon.gov.ng

All responses to this RfP shall be submitted to rfpam21@gmail.com or our office addresses below not later than Friday 19th March, 2021.

For further enquiries, please call 08050899900

Dr. Olalekan Fadolapo, FCA, rpa
Registrar/Chief Executive

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<< PRESS RELEASE >>

PRESS BRIEFING ON REPOSITIONING OF THE NIGERIAN ADVERTISING INDUSTRY FOR GROWTH BY THE DIRECTOR GENERAL OF THE ADVERTISING REGULATORY COUNCIL OF NIGERIA (ARCON), DR. OLALEKAN FADOLAPO, FCA, fnimn, frpa

Good afternoon, Directors of ARCON present and gentlemen of the press.

In line with Federal Government policy of economic recovery, inclusive growth, development of local talents, and the directive of the Hon. Minister of Information and National Orientation, Alhaji Mohammed Idris on the need to strengthen the Nigerian Advertising Industry regulatory framework and reverse the negative trajectories currently plaguing the industry, The Advertising Regulatory Council of Nigeria (ARCON), a regulatory agency of the Federal Government with responsibility for the administration and control of advertising, advertisement and marketing communication in Nigeria hereby issues the following regulatory framework for the Nigerian advertising industry:

1. **Professional Indemnity for Sectoral Groups**
   As part of the ongoing advertising industry reform and the need to strengthen advertising agencies service delivery, build capacity and capability as well ensure long term stability in the industry, each sectoral group, i.e. AAAN, EXMAN, MIPAN and OAAN is to provide N1B (One Billion Naira) professional industry insurance cover for its members. This covers professional indemnity for members of their Association as part of the corporate license requirements. The full implementation of the corporate licence regime will take effect from April 1, 2024.

2. **Capital Structure, Working Capital, etc.**
   There is an urgent need to review the capital structure and working capital requirement of the advertisement agencies in line with economic realities and capacity building programmes of ARCON. ARCON is currently in talk with the Heads of Advertising Sectoral Groups (HASG) and other relevant stakeholders on the minimum capital requirement for registration and license as an advertisement agency. Regulatory guidelines will be issued as soon a position is taken on this.

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3. **45 Days Payment Threshold**

ARCON is collaborating with EFCC, NBC and other government agencies on the implementation of the 45 days credit threshold in the advertising industry. Any organisation that offered payment threshold outside 45 credit policy will be tagged as economic saboteur of the Nigeria advertising industry. Such organisation will be flagged and reported to other government agencies for further investigation and necessary punitive actions.

Globally, payment threshold is a policy in the advertising industry. Some stakeholders have been offering Nigerian media and other service providers 120 days payment circle, thereby impoverishing the Nigerian advertising industry. These same stakeholders prepay foreign media houses operating in Nigeria for media services. Some had insisted on old practices that have led to industry debt and exploitation of media owners. We can no longer allow this to continue.

4. **Use Of Local Talents:**

ARCON will continue to insist that that Nigerians should be considered as primary in all advertisement targeted at the Nigerian market. Use of foreign models and voices are banned except where it is inevitable. In this case, application for variation should be formally addressed to the Director General with detailed explanation of the rationale for the use of the foreign talent. Approval is not automatic. If you are selling your product to Nigerians, use Nigerians to your advertisement.

5. **Data Bank for Advertisement Agencies**

As part of our effort of building a robust and beneficial data bank for the Nigeria advertising industry, ARCON has commenced a national audit of advertisement agencies in line with its establishment Act. ARCON will write to seek all relevant information from stakeholders and ensure that only licensed advertisement agencies are engaged. We have started reaching out to advertisers both private and public organisations, State Signage Agencies etc on this. A directory of advertising agencies in Nigeria will be produced immediately after the completion of the first audit exercise.

6. **Media Rates Deregulation**

Media Rates remains deregulated in the Nigerian Advertising Industry. No stakeholder or group of stakeholders should regulate media rates charged by the Nigeria Media Houses. The Nigerian media houses should be accorded the same level of respect and business practices accorded foreign media organisations

operating in Nigeria. Let demand and supply determine sales and purchases of media services as it is in the other sectors of the industry.

7. Engagement and Disengagement Protocol

All stakeholders are requested to adhere to the engagement and disengagement procedure as stated in the Advertising Industry Standard of Practice (AISOP). ARCON has commenced full implementation of the AISOP framework. Where an agency is disengaged without proper reconciliation of financial matters before engaging another agency on the same account, and ARCON is petitioned. The new agency and engaging organisation will be investigated, and where they are found culpable, they will be sanctioned.

8. Publication of ARCON Register of Practitioners

ARCON has been battling with issues of exposure of unapproved advertisement, illegal advertising practices, damaging actions of unregistered persons claiming to be advertising practitioners among other challenges. Sequel to the above, ARCON would publish its membership register as soon as the ongoing membership review exercise is concluded. A notice has been issued in this regard by the Registration Directorate of ARCON.

9. Stoppage of Imported Advertisement in Nigeria

ARCON will continue to insist on production of advertisements in Nigeria, stop the capital flight and development of other economies by some Nigerian organisations' attitude of going out of the country to produce advertisements meant for our market. All commercials to be exposed to Nigerians should be produced in Nigeria. We need to create jobs for the Nigerian youths, help grow and develop the support service sector of the industry and circulate funds within the Nigerian advertising ecosystem. Where advertisements are produced outside Nigeria, such advertisements will be heavily taxed. Consequently, the variation rate will be reviewed upwards shortly.

10. National Policy on Out-of-Home (OOH) Advertising

A Committee chaired by the Director General of ARCON has been set up to plan and organise a national workshop on OOH advertising business. ARCON is collaborating with States' Signage Agencies and OAAN on the need to formulate a broad base OOH Advertising regulatory framework for the industry. We will seek input from all relevant stakeholders and ensure industry participation in the framework. A committee has been set up to work on this.

ARCON
Advertising Regulatory Council Of Nigeria

In conclusion, we will continue to engage all stakeholders in ensuring a win-win situation for the growth of the industry in particular and the Nigeria economy in general.

We need the support of all stakeholders to sanitize the Nigerian advertising industry and create a better ecosystem.

Gentlemen of the press, your support will be highly appreciated.

Good afternoon and thank you for coming.

Dated this 6th day of February, 2024.

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Advertising Regulatory Council Of Nigeria

<< PRESS RELEASE >>

RE: ADVAN'S REASON FOR SUIT AGAINST ARCON

The attention of the Advertising Regulatory Council of Nigeria (ARCON) has been drawn to a recent press release by the Advertisers Association of Nigeria (ADVAN) on the reason why it is instituting legal action against the National Assembly, the Attorney General of the Federation and Honourable Minister of Justice, the Honourable Minister of Information and National Orientation, and ARCON to seek clarification on certain sections of the Advertising Regulatory Council of Nigeria Act.

ARCON would like to clarify as follows in response to the press release;

1. **Remit of the Law**

   ADVAN'S Position

   The above section of the ARCON law essentially states that ARCON can override any other legislation or regulation as it pertains to advertising and marketing communications in Nigeria. ADVAN seeks clarity on this, as various industry regulators also regulate advertising content for its members.

   ARCON's Explanation

   Every government regulatory agency created by law has its primary and secondary remit. The primary remit of the ARCON Law is to regulate advertising, advertisement and marketing communications in all ramifications. The primary remit of the Central Bank of Nigeria (CBN) Act is financial regulation, for National Insurance Commission (NAICOM) Act, it is insurance regulation, for the National Agency for Food and Drug Administration and Control (NAFDAC) Act, it's food and drugs, for National Broadcasting Commission (NBC) Act, it's the broadcast media. Notwithstanding this, all regulatory agencies also have overlapping functions on business and industry that impinge on their regulatory jurisdiction.

2. **Regulatory Space/Jurisdiction**

   ADVAN'S Position

   ADVAN Members belong to various industries and are regulated by the appropriate regulators of those industries.

Here ARCON states in its new law, that it now regulates advertisers (all corporate entities that utilize advertising) even though they do not engage in the business of advertising.

ADVAN is asking the court to clarify if a regulator can move beyond its mandated regulatory jurisdiction, to regulate the clients/ beneficiaries of services of its regulated (E.g., Who does the Nigerian Bar Association regulate? Lawyers or clients of Lawyers?).

ADVAN Understanding of regulations globally is that regulations are for those registered in an industry or profession, NOT the clients or beneficiaries of the services.

ARCON'S Explanation

The primary mandate of ARCON is to regulate advertising, advertisement and marketing communications in all ramifications. ARCON does not license or seek to license ADVAN members, but rather, it sets the industry framework for the advertising industry in line with its mandate. Just as NAICOM sets the standard for the insurance industry, CBN sets the standard for the banking industry, and the Nigeria Communications Commission (NCC) sets the standard for the telecoms industry.

The example of the Nigerian Bar Association (NBA) used by ADVAN does not fit into this issue as NBA is an association of lawyers registered as an Incorporated Trustees with Corporate Affairs Council (CAC) and not a creation of the law or a regulatory agency like ARCON. NBA cannot be compared with ARCON as postulated by ADVAN.

ADVAN is enjoined to seek a legal opinion from a competent and experienced legal practitioner(s) on this, including the legal status of the NBA and the regulatory body of the legal profession.

3. **Definition of Advertising by ARCON**

   ADVAN'S Position

   This definition of advertising is incorrect. The definition tends closely to the definition of marketing and not advertising.

   ADVAN is asking the court to clarify if a regulatory institution can change globally accepted definitions and terminologies arbitrarily without recourse.

If regulatory bodies can now decide their own definitions and terminologies of existing and approved terms, as it suits them.

ARCON'S Position

It is shocking and surprising that ADVAN leadership states that the definition of advertising as enacted by the National Assembly in the Act is not correct and does not conform with the globally accepted definition of advertising. This is quite laughable. Who gave the global definition? Where? And when?

ADVAN is challenging the right and power of the Federal Government to define advertising as it affects the Nigerian market.

We are not sure what ADVAN meant by the phrase "without recourse". Recourse to who? ADVAN? We will advise ADVAN leadership to speak with competent lawyers and seek education on this.

4. **Registered Persons and Offences**

ADVAN'S Position

ADVAN is asking that the court clarify if the above section of the ARCON law seeks to register and regulate all persons that have oversight function of their organizations advertising and marketing communication's activities. (e.g., Marketing Communications Directors of Advertiser organizations)

ADVAN is of the understanding that a business can utilize the services of any professional (person or organization) without needing to be registered with the professional/regulatory body in charge. As is the case, Accountants, Auditors etc.

ADVAN is asking the court if a business should not have the right to oversee work done by professionals without necessarily needing to be registered or regulated in that profession.

ARCON'S Position

Advertisers engage several skills and professionals in their organizations. Anyone performing an oversight function on a specialized skill area is required to practice in conformity with the regulatory requirement of that professional field. The legal departments of organization members of ADVAN is staffed with competent personnel with relevant qualifications in the legal profession. They exercise oversight responsibilities on legal matters as they affect their organisations.

Lawyers are to practice in line with the Legal Practitioners Act, Accountants are to ensure conformity with relevant financial regulations issued from time to time by relevant government agencies e.g. Financial Reporting Council, ICAN, ANAN, etc. Advertising is a specialized skill and regulated profession like others. Whoever is performing an act or oversight function in advertising should do so in line with the ARCON Act.

Each profession comes with relevant qualifications as well as a regulatory framework or guideline.

5. **Advertising Offences Tribunal**

ADVAN'S Position

The above stipulations of the ARCON Law seeks to create an extrajudicial system under an Executive arm of government. Nigeria as a democratic entity has clear separation of powers between the different arms of government. For a regulatory body to set up a Tribunal with powers to hear, try and pass judgment is clearly in breach of the constitution of the nation

The above section confers on ARCON the powers to issue a search warrant into private business when it deems fit. This again goes against the rights of advertisers to conduct legal private business. A regulator cannot by any definition take the place of the courts.

ARCON'S Position

Tribunal is a judicial body created by the law to adjudicate disputes of a specific type. Tribunal is not new to the Nigerian legal system as Tribunals currently exist in other industries and sectors of the economy; some of these include Investment and Security Tribunal (IST) for investment and security matters, Tax Tribunal for tax matters, Competition and Consumer Protection Tribunal for consumer protection matters and Advertising Offences Tribunal for advertising related matters among others.

It will be expedient to ask ADVAN to state the sections of the Constitution of the Federal Republic of Nigeria which the establishment of the Advertising Offences Tribunal breaches.

6. **Power of the Council**

ADVAN'S Position

The above section clearly interferes with the right of advertisers to conduct legal private business.

ADVAN is asking the court to clarify if a regulator of private business practice can demand access to financial records without a court order? Or compel organizations to disclose private business matters?

ARCON's Position

Every government agency with investigative power has a right of access to information to enable it to act accordingly as provided in its Act and in line with the constitution. ADVAN is advised to check this with other government agencies that have investigative responsibilities and the powers.

In this case, the information being required by ARCON is information related to advertising, advertisement and marketing communications being ARCON's primary remit.

7. **Industry Payment Policy**

ADVAN'S Position

Globally payment terms are under private contractual terms or as best industry practice – agreed by stakeholders within an Industry as a gentleman's agreement, not as legislation.

As a member of the World Federation of Advertisers, ADVAN has researched payment methods globally, and findings from this research show that there is NO LEGISLATION around contract and payments terms for stakeholders within an Industry.

ARCON'S Position

Payment Threshold framework and regulation varies from market to market and industry to industry. In an economy where self-regulation exists and works perfectly well, organizations within the system agree and sign off on payment threshold. This is also expected to align with statutory advertising regulatory framework.

However, in an economy or industry where self-regulation fails, regulatory agencies take up the responsibility in line with its mandate.

NAICOM introduced the zero-debt regime in the Nigerian Insurance industry and recently increased insurance rates in some cases by 200% as part of the industry business framework.

Self-regulation has failed in the Nigerian Advertising Industry. The big/strong stakeholders have continued to exploit and take advantage of the weak stakeholders. ARCON has acted within its mandate, powers and function to ensure stability in the Nigerian Advertising ecosystem.

ADVAN members are enjoined to further engage their advertisement agencies in the discussion of payment threshold. However, the agreement must align with the maximum days set by the regulator, that is 45 days payment circle.

ADVAN leadership is advised to engage and seek counsel from competent and experienced legal practitioners on Nigerian administrative law, advertising law, and jurisprudence as this will help in their quest for better clarification and understanding.

Head, Corporate Affairs

8th November, 2023

ARCON
Advertising Regulatory Council Of Nigeria

HAYAT KIMYA'S INDEBTEDNESS OF N481,349,845.45 TO MAINSAIL MEDIA LIMITED 7-DAYS ULTIMATUM TO RESOLVE THE DEBT

Preamble

Hayat Kimya Nigeria Limited is a subsidiary of Hayat Holding, a Turkish enterprise with strong presence in several countries including Nigeria. Hayat kimya Nigeria Limited is also a player in the FMCG sector and a member of the Advertisers Association of Nigeria (ADVAN).

Mainsail Media Limited is a Media planning and buying agency. Mainsail Media Limited is a member of the Media Independent Practitioners Association of Nigeria (MIPAN).

FACT OF THE CASE AS ESTABLISHED AT THE MEETING HELD ON MAY 24, 2022 AT APCON HOUSE, NATIONAL THEATRE ANNEXE, IGANMU, LAGOS

1. Hayat Kimya Head Office in Turkey engaged Mainsail as its Media Independent agency to coordinate media buying and placement, working with Hayat Kimya Nigeria Limited.

2. The contract was initially for 12 months and renewable every December.

3. Sometime in June 2021, Hayat Kimya alleged that a whistle-blower sent information that Mainsail was fraudulent in executing media contract in connivance with a media monitoring service provider.

4. Hayat Kimya Head Office instituted investigation after the allegation into the matter without the knowledge or involvement of its Nigeria office.

5. Notwithstanding the whistle-blowing, Hayat Kimya continued to conduct business with Mainsail until sometime in September, 2021.

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6. Hayat Kimya disengaged Mainsail in November, 2021, the outstanding invoice as at the time was N481,349,854.45 (Four Hundred and Eighty-One Million, Three Hundred and Forty-Nine Thousand, Eight Hundred and Forty-Five Naira, Forty-Five Kobo only).

7. Hayat Kimya did not inform the Management of Mainsail of the whistle blowing up until the meeting called by the advertising industry regulator – the Advertising Practitioners Council of Nigeria (APCON) now the Advertising Regulatory Council of Nigeria (ARCON).

8. Hayat Kimya offices have ignored all correspondence from Mainsail and failed to liquidate the outstanding debt.

9. The investigation of the allegation has been ongoing for 12 months as at the time of the meeting.

INDUSTRY INVOLVEMENT

1. Media Independent Practitioners Association of Nigeria (MIPAN), as Mainsail's Sectoral Group, sought to intervene and reached out to the Management of Hayat Kimya Nigeria Limited on the issue. However, the Management of Hayat Kimya Nigeria Limited did not respond to enquiries or overtures from MIPAN. Mainsail consequently reported the matter to APCON (as it then was) through MIPAN.

2. APCON (as it then was), wrote letters to Hayat Kimya requesting for a meeting, but was replied that the issue was under investigation by another government agency hence the company will not respond to any enquiry or correspondence on the issue. The insistence of APCON (as it then was), that the case was not subjudice and was within the jurisdiction of the regulatory authority compelled Hayat Kimya Nigeria Limited to appear before its committee on 24th May, 2022 in company of Mr. Osamede Uwubamwen the President of its sectoral group, the Advertisers Association of Nigeria (ADVAN).

OBSERVATION AND DECISION OF THE COMMITTEE

1. The Committee noted that the investigation had been going on for about 12 months (June 2021 to May 2022), a time long enough to have had investigation of the matter concluded and the issue of indebtedness resolved.

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2. If Mainsail or any of her officers is found guilty, the organization or any such officer should be prosecuted and the money recovered.

3. Decision of Hayat Kimya to continue investigation in perpetuity is objectionable and injurious to the business and activities of Mainsail in particular and the industry in general.

4. All investigations should be concluded within 90 days from the date of the meeting and the issue resolved thereafter.

5. APCON (as it then was), will review the issue in September, 2022 for conclusion and finalization.

STATUS OF THE ISSUE

1. Hayat Kimya has failed, neglected and ignored all correspondences from Mainsail.

2. Hayat Kimya has failed, neglected and ignored all overtures to pay its debt to Mainsail.

3. Hayat Kimya has resolved to continue the investigation in perpetuity with impunity and disregard to the Nigeria advertising industry regulations.

IMPLICATION OF HAYAT KIMYA'S ACTION

1. Mainsail is a media-buying agency, hence the bulk of the money is owed to Nigerian Media houses and third party suppliers across several sectors.

2. The money owed has lost substantial value over time due to inflation and rising cost of business operations.

3. Hayat Kimya has moved on with its media buying business and doing business without recourse to the alleged indebtedness.

4. Hayat Kimya's continued indebtedness with and resolve to act with impunity over the matter is a sad example of one of the root causes of decadence in the Nigerian Advertising Industry.

5. The action of Hayat Kimya has led to loss of jobs and disruption in the Nigeria advertising ecosystem in particular and the economy in general.

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REGULATORY AUTHORITY'S RESOLVE

1. Hayat Kimya should resolve the issue indebtedness with Mainsail within 7 days of receipt of this letter.

2. Where the debt is not resolved within 7days, the ARCON will be constrained to invoke all or any of the following actions:
   (a) Revoke all approvals to advertise issued to Hayat Kimya advertising materials until the issue is resolved.
   (b) Decline further approval of all advertisement materials of Hayat Kimya until the issue is resolved.
   (c) Enter Hayat Kimya in the black book of Nigerian Advertising Register.
   (d) Petition other relevant government regulatory agencies to investigate the business and economic activities of Hayat Kimya in Nigeria for the purpose of determining whether such activities are being carried out in an unethical manner and in disregard to government's regulation.
   (e) Cause the prosecution of Hayat Kimya or its officers where violation of any provision of the law is observed.

ARCON will continue to ensure ethical advertising and marketing communications practice in Nigeria.

Signed:
Dr. Olalekan Fadolapo, FCA, rpa
Director-General

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ARCON

Advertising Regulatory Council Of Nigeria

<< PRESS RELEASE >>

February 12, 2024

Notice of publication of Register of Advertising Practitioners

This serves as notice to Advertising practitioners and corporate organisations engaged in advertising, advertisement and marketing communications business in Nigeria that the Advertising Regulatory Council of Nigeria (ARCON) will publish the **Register of Advertising Practitioners** in March, 2024.

This is in line with the provisions of the ARCON Act, 2022, section 22 (1) and (5) and section 23 (1) requiring the Council to maintain a register of persons entitled to practise Advertising in Nigeria as well as organisations entitled to undertake the business of advertising, advertisement and marketing communications in Nigeria in accordance with the Act and to publish such register from time to time.

Only persons and organisations who have fulfilled the conditions for listing in the register, including up to date payment of the annual practice fee and corporate license fee as applicable, will be listed in the publication.

We therefore invite and urge persons and organisations who desire to be listed in the register to contact ARCON through any of our offices or email address (arconreg01@gmail.com) to verify their practice status so as to do the needful and avoid any embarrassment the publication may cause them.

For further enquires, contact **Dapo - 09154492671, Momoh - 08022577500 or Joe - 08050898446.**

Joe-Eugene Onuorah, frpa
Director, Registration

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NOTICE OF PUBLICATION OF REGISTER OF ADVERTISING PRACTITIONERS AND ADVERTISEMENT AGENCIES LICENSED BY ARCON

This serves as notice to advertising practitioners and corporate organisations engaged in advertising, advertisement and marketing communications business in Nigeria that the Advertising Regulatory Council of Nigeria (ARCON) will publish the **Register of Advertising Practitioners and Advertisement Agencies** in March, 2024.

This is in line with the provisions of the ARCON Act, 2022, section 22 (1) and (5) and section 23 (1) requiring the Council to maintain a register of persons entitled to practise Advertising in Nigeria as well as organisations entitled to undertake the business of advertising, advertisement and marketing communications in Nigeria in accordance with the Act and to publish such register from time to time.

Only persons and organisations who have fulfilled the conditions for listing in the register, will be so listed in the publication in line with the law.

Kindly note that the full implementation of the Corporate license regime will commence on **April 1, 2024.** All Advertisement agencies (i.e Full Service, Creative, Media Buyer, Media Brokers, Digital Agencies, Experiential, Below The line and Out Of Home OOH) are required by law to obtain an operating license from ARCON.

For further enquires, on practice status kindly contact **Dapo – 09154492671, Momoh – 08022577500** or **Joe – 08050898446.**

Dr. Olalekan Fadolapo, FCA, fnimn, frpa
Director-General

February 12, 2024

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DOCUMENTATION OF NON-NIGERIANS ENGAGED IN THE NIGERIAN ADVERTISING INDUSTRY

In line with the ongoing industry reform and the need to keep proper record of all Non-Nigerians engaged by Advertising Agencies in Nigeria, we wish to inform all Advertising Agencies (i.e. full service, creative, media independent, out-of-home, digital and experiential agencies) of the need to ensure proper documentation of all Non-Nigerians in their employments.

Advertising Agencies which currently engage Non-Nigerians are requested to obtain approval for such employment before 31st March, 2024 for regularization.

With effect from 1st April, 2024, employments of Non-Nigerians will require the prior approval of the Advertising Regulatory Council of Nigeria (ARCON) in line with ARCON proclamation.

Applications for engagements of Non-Nigerians will include the following information:

1. Evidence of work permit obtained from relevant government agencies.
2. Proof of the remuneration package and conditions of service as comparable to those offered to Nigerians on the same status and positions.
3. Proof the employment of foreign practitioners will assist in transferring new skills and knowledge to Nigerians.
4. Evidence that the engagement of a foreigner will not affect the employment of Nigerians negatively.
5. The genuineness/validity of the offer.

Non-Nigerians are welcome to practice the profession in Nigeria. However, such practitioners shall be certified and licensed by ARCON in line with the Nigerian Advertising Laws.

Thank you.

Dr. Olalekan Fadolapo, FCA, fnimn, frpa
Director-General

4th March, 2024

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MISINFORMATION, DISINFORMATION, EXAGGERATION, UNSUBSTANTIATED CLAIM, UNVERIFIED PROMISE, BRAND HYPE ETC. BY OAPS, SKIT MAKERS, INFLUENCERS, AND BRAND OWNERS.

The attention of the Advertising Regulatory Council of Nigeria (ARCON) has been drawn to the continued violation of the Nigerian Code of Advertising and the ARCON Act by some stakeholders.

The spate of misinformation, disinformation, exaggeration. unverified promises, unsubstantiated claims, brand hype etc by OAPs, Skit Makers, Influencers and Brand Owners is not only worrisome but has also led to loss of savings, investments and has caused medical challenges in some cases.

This is to reiterate that all advertisements and advertising in Nigeria or targeted at the Nigerian market must align and conform with the Nigerian Code of Advertising and other pronouncement of ARCON in line with the ARCON Act.

Continued abuse of the advertising space by some stakeholders will no longer be tolerated as this has negative effect on the economy in particular and to the citizenry at large.

ARCON will seek to prosecute any person or body corporate who sponsors, caused to be exposed, create or expose unapproved advertisement on any medium without approval of the Advertising Standards Panel (ASP).

We count on your continued support to sanitize the Nigerian Advertising Industry.

Thank You.

Dr. Olalekan Fadolapo, FCA, frpa, fnimn
Director-General

February 19, 2024

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ARCON
Advertising Regulatory Council Of Nigeria

NATIONAL ADVERTISING CONFERENCE 2023

MARKETING COMMUNICATION AS AN ENABLER OF NATIONAL TRANSFORMATION

COMMUNIQUE

RESOLUTIONS AND RECOMMENDATIONS

At the end of its 3-day national advertising conference held in Abuja, Advertising practitioners from across Nigeria and various sectoral affiliations adopted the following communique:

1. **The current economic reality in Nigeria and imperatives of a reform**
   The conference urged for the strengthening of Financial Governance, Enhance the tax system by eliminating multiplicity of informal taxes, harmonizing tax administration, and leveraging technology and big data. Prioritize spending on basic needs for addressing multidimensional poverty, and reclassify budgeting based on human capital development, infrastructure, and overheads.

2. **The economic impact of advertising in the Nigerian economy: the multiplier factor**
   With benefit of the insight from examination of the GDP report across sectors, the conference resolved to foster increased collaboration and synergy among professionals leveraging the diverse value contributed across sectors with the objective of achieving a national goal of $2 trillion by 2030.

3. **Brand Nigeria: Changing the narrative**
   The conference agreed on the need and therefore resolved to initiate a nationwide storytelling campaign that would encourage ordinary Nigerians to share their personal stories that reflect the positive aspects of the Nigerian identity and to utilize various platforms to create a groundswell of authentic narratives.

4. **Understanding the AFCTA and the implications for the IMC industry**
   The conference highlighted the need to develop a streamlined process for advertisers to obtain approvals that are valid across multiple AfCFTA member countries as well as collaborate with other African countries to share best practices and insights on effective advertising regulation, fostering a community of learning and cooperation.

5. **Out Of Home Advertising: Scaling up to global competitiveness**
   The conference agreed on the need for an acceptable Out of Home audience measurement metrics and increased use of data to explain the past, understand the present and predict the future.

6. **Local Content and Cultural Sensitiveness**
   The conference emphasized the need for cultural sensitivity in content creation and deployment as well as greater infusion of Nigerianess in marketing communication content.

7. **Unlocking the market for SMES**
   The conference resolved to implement a comprehensive marketing communication plan for SMEs by prioritizing strategic customer relationship, building over short-term sales leads, aligning activities with sales conversion, and leveraging collaborations with relevant experts to address industry-specific challenges.

8. **The new university curriculum and its implications for the IMC industry**
   The conference resolved to collaborate with academic institutions and industry experts to develop and implement a revised curriculum for the Integrated Marketing Communications (IMC) industry. It further resolved to facilitate and strengthen partnerships between the IMC industry and academic institutions.

Mr. Tunji Adeyinka, frpa
Chairman, Organizing Committee

Dr. Olalekan Fadolapo, FCA, frpa, fnimn
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